

TENTATIVE RULINGS

DEPT CX102

Judge Layne H. Melzer

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TENTATIVE RULINGS
05/14/2026 and 05/15/2026
02:00 PM

101	Riley vs. B. BRAUN MEDICAL, INC. 2019-01069273	Final Accounting The settlement administrator, Simpluris, Inc., has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiff has shown that the administrator's work is complete, the Court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendants.
102	Aristondo vs. Prospera Management Inc. 2023-01334274	Final Accounting Plaintiff Gloria Aristondo's Final Accounting hearing is CONTINUED to July, 23, 2026 at 2:00 p.m. in Department CX102 to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees and that the administrator's work is complete in compliance with the Court's previous 7/30/2025 Order Granting Plaintiff's Motion to Approve Settlement Agreement Pursuant to the Private Attorneys General Act of 2004 and Final Judgment (ROA #112). Paragraph 7 of that order specifies that "[f]or any Aggrieved Employee whose Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Aggrieved Employee." All supporting papers must be filed at least sixteen (16) court days before the continued hearing date. If a supplemental report cannot be filed by this deadline, counsel must request a continuance. Failure to request a continuance may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this ruling to Defendant.

103	Phetsamone Solis vs. Integral Senior Living LLC 2018-01015988	Final Accounting The settlement administrator, Atticus Administration, LLC, has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. (ROA #271.) As Plaintiffs have shown that the administrator’s work is complete, the Court’s file may now be closed. Plaintiffs are ordered to give notice of this ruling to Defendants.
104	Griffin vs. Lendify Associates LLC 2025-01517244	Demurrer to Complaint Defendant Lendify Associates LLC’s demurrer to Plaintiff Heather Griffin’s complaint is OVERRULED. (Code Civ. Proc. [CCP], § 430.10, subd. (e).) Defendant shall file and serve an answer, if any, within 14 days of notice of this ruling. Defendant’s and Plaintiff’s requests for judicial notice (RJN) are GRANTED. (Evid. Code, § 452, subd. (d).) Defendant’s sole argument in support of the demurrer is that Plaintiff’s complaint is barred by res judicata because the complaint is identical to one dismissed by the United States District Court for the Central District of California in <i>Griffin v. Lendify Associates LLC</i>, Case No. 8:25-cv-01282-JWH-ADS. As Defendant notes, the district court’s dismissal was based on Plaintiff’s failure to comply with the district court’s Order to Show Cause re Dismissal for Lack of Prosecution. (See ROA #18 [RJN ISO Dem.] at Exh. 3.) The district court’s judgment dismissing the case cited Federal Rule of Civil Procedure (FRCP), rule 41(b) in support of its dismissal but did not specify whether the dismissal was with or without prejudice. (<i>Id.</i> at Exh. 4.) FRCP, rule 41(b) states: (b) Involuntary Dismissal; Effect. If the plaintiff fails to prosecute or to comply with these rules or a court order, a defendant may move to dismiss the action or any claim against it. Unless the dismissal order states otherwise, a dismissal under this subdivision (b) and any dismissal not under this rule—except one for lack of jurisdiction, improper venue, or failure to join a party under Rule 19—operates as an adjudication on the merits. As the language of FRCP, rule 41(b) itself suggests and as the Ninth Circuit has recognized, the district court has discretion to dismiss an action with or without prejudice under FRCP, rule 41(b) and under its inherent powers. (See <i>Al-Torki v. Kaempfen</i> (9th Cir. 1996) 78 F.3d 1381, 1385.)

The Central District has adopted a local rule providing that its dismissals under FRCP, rule 41(b) are without prejudice unless otherwise stated:

L.R. 41-1 Dismissal - Unreasonable Delay. Civil suits which have been pending for an unreasonable period of time without any action having been taken therein may, after notice, be dismissed for want of prosecution.

L.R. 41-2 Dismissal - Effect. Unless the Court provides otherwise, any dismissal pursuant to L.R. 41-1 shall be without prejudice.

(Bolding original.)

Thus, under the Central District’s Local Rule 41-2, the district court’s dismissal of the *Griffin* action could have only been without prejudice because the district court’s judgment dismissing the case did not provide otherwise.

Indeed, Defendant even cited two Central District cases that acknowledge the district court’s discretion to dismiss with or without prejudice under FRCP, rule 41(b) and that cite the Central District’s Local Rule 41-2 providing for dismissals without prejudice as the default rule when the court does not state otherwise. (See *Myers v. Unknown* (C.D.Cal. Nov. 25, 2020, Case No. 5:20-cv-01564-JWH-KES) 2020 U.S. Dist. LEXIS 223606, *3 [“The Court has discretion to dismiss an action under Rule 41(b) with or without prejudice. See Local Rule 41-2 (‘[u]nless the Court provides otherwise, any dismissal pursuant to [Local Rule] 41-1 [Dismissal for Unreasonable Delay] shall be without prejudice’).”], attached as RJN ISO Dem., Exh. 5; *Pineda v. Lester* (C.D.Cal. Aug. 13, 2019, Case No. 8:19-cv-00605-DOC-ADSx) 2019 U.S. Dist. LEXIS 136780, *5 [“this action is dismissed pursuant to Rule 41(b) and Local Rule 41-1. Local Rule 41-2 provides, ‘[u]nless the Court provides otherwise, any dismissal pursuant to [Local Rule] 41-1 shall be without prejudice.’ L.R. 41-2. In general, a court has discretion to dismiss an action under Rule 41(b) with or without prejudice. See Fed. R. Civ. P. 41(b); *Al-Torki v. Kaempfen*, 78 F.3d 1381, 1385 (9th Cir. 1996).”], attached as RJN ISO Dem., Exh. 6.)

There is no merit to Defendant’s arguments that the district court’s dismissal was not for lack of prosecution or that Local Rule 41 does not apply here simply because the district court’s judgment did not explicitly cite Local Rule 41 or specify that the dismissal was “without prejudice.” In light of the title and substance of the district court’s OSC and the dismissal’s reference to FRCP, rule 41(b) (which governs involuntary dismissals when “the plaintiff fails to prosecute or to comply with . . . a court order”), it is clear that the district court’s subsequent dismissal of the case was made because of Plaintiff’s failure to prosecute. Pursuant to Local Rules 41-1 and 41-2, such a dismissal is, by default, without prejudice when the court does not provide otherwise. Thus, when the court did not provide otherwise, the dismissal was without prejudice.

Contrary to Defendant’s contention, Local Rule 41 is not a “subversion [or] misreading of [FRCP] Rule 41(b) [or] the Judgment itself” (Dem. P&A at p. 7) because the district court has the discretion under FRCP, rule 41(b) and its inherent powers to dismiss for failure to prosecute either with or without prejudice (*Al-Torki, supra*, 78 F.3d at p. 1385). Nor does the Central District’s Local Rule 41

		violate FRCP, rule 83, which permits district courts to adopt local rules to govern their practice so long as the local rules are consistent with the federal rules. Local Rule 41 is consistent with FRCP, Rule 41(b) in that both rules acknowledge the district court's discretion to dismiss an action with or without prejudice under FRCP, rule 41(b) and under the court's inherent powers. The Central District acted well within its authority to adopt a rule that governs its practice when it issues a dismissal for failure to prosecute without specifying whether the dismissal is with or without prejudice. Plaintiff shall give notice of this ruling.
105	De La Rosa vs. PLAN888 Inc 2025-01495101	Motion to Be Relieved as Counsel of Record Attorney Anthony Cartee and law firm Cartee, LC's motion to be relieved as counsel of record for Defendant Plan888, Inc. d/b/a Plan B is GRANTED, effective upon the filing of the proof of service of the signed order upon the client. (Code Civ. Proc., § 284, subd. 2.) Moving counsel shall lodge with the Court an updated proposed order including all information required to be listed in ¶ 6, including the client's current telephone number. An Order to Show Cause is set for May 28, 2026 at 9:30AM in Department CX102. At the hearing, the Court will strike Defendant Plan888, Inc. d/b/a Plan B's answer for its failure to appear through counsel unless it (1) substitutes in new counsel before the hearing or (2) appears at the hearing and shows good cause otherwise. (See <i>Merco Construction Engineers, Inc. v. Mun. Ct.</i> (1978) 21 Cal.3d 724, 730 [corporation may not represent itself and must appear through a licensed attorney]; <i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1145, 1150 [same, and "court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time"].) Moving counsel shall give notice of this ruling and file proof of service with the Court within 5 court days.

106	Martinez vs. Far West Restaurant Group, LLC 2025-01511268	Motion to Compel Arbitration Defendant Far West Restaurant Group, LLC’s (“Far West”) motion to compel arbitration is GRANTED. Plaintiff Brian Cisneros Martinez is ordered to arbitrate his individual claims, including the individual components of his PAGA claims. The class claims are dismissed without prejudice. The representative portion of plaintiff’s PAGA claims and this case otherwise is STAYED pending completion of arbitration. An ADR Review Hearing is scheduled for February 4, 2027 at 2:00PM in CX102. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete. Existence of Arbitration Agreement The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. Little v. Pullman (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. Id.; Perry v. Thomas (1987) 482 U.S. 483, 492 n.9 (State law applicable to contracts generally governs whether a valid arbitration agreement exists.) While the burden of persuasion is always on the moving party, the burden of production may shift in a three-step process. First, the moving party must present “prima facie evidence of a written agreement to arbitrate the controversy”, which is satisfied by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature. Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal.App.5th 158, 164–67. At this step, a movant need not follow the normal procedures of document authentication. Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218-219. If the moving party meets its initial burden, and the opposing party disputes the agreement, then the burden shifts to the opposing party to challenge the authenticity of the agreement. Finally, if plaintiff presents evidence that no agreement exists, the burden shifts back to the moving party to present admissible evidence of a valid arbitration agreement between the parties by a preponderance of the evidence. Gamboa, supra, 72 Cal.App.5th at 164–67. Here, there is no dispute plaintiff electronically signed the “Binding Mutual Agreement to Arbitrate Claims” (the “Agreement”) on 06-12-2024. ROA 22 Ex. 1. Accordingly, the court finds the parties formed an agreement to arbitrate. Relevant Terms of the Agreement The Agreement applies to “any controversy, claim or dispute between [plaintiff] and...Company.” ROA 22 Ex. 1. The Agreement defines “Company” as defendant Far West Restaurant Group, LLC’s and its “related entities, holding companies,
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parents, subsidiaries, divisions, officers, shareholders, directors, employees, agents, insurers, vendors, contractors, customers, predecessors, successors, and assigns.” Id.

The Agreement includes a class and representative action waiver that is enforceable to the extent permitted by law. ROA 22 Ex. 1. Specifically, the Agreement gives the arbitrator express authority to adjudicate the individual portion of a PAGA claim. Id. A severability provision provides for the enforcement of all other provisions in the event a court finds any part unenforceable. Id.

There is no dispute the Agreement covers the claims asserted by plaintiff.

Federal Arbitration Act

The Agreement expressly provides the Federal Arbitration Act (“FAA”) applies. ROA 22 Ex. 1. Defendant has also presented undisputed evidence it is engaged in interstate commerce. ROA 22 ¶¶ 2-4. The court thus finds the FAA applies and plaintiff does not challenge its application.

Unconscionability

Plaintiff argues the Agreement is unconscionable in several respects and therefore unenforceable.

In *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening” the FAA’ or California law.” Id. at 125; accord *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.

“Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.] If the contract is adhesive, the court must then determine whether ‘other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].’” *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113. 113.

To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243; see also *OTO, L.L.C.*, supra, 8 Cal.5th at 129-30. “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” *Armendariz*, supra, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 402.

Procedural Unconscionability

Plaintiff states he was required to sign the Agreement and could not negotiate its terms. ROA 45 ¶¶ 4-5. Defendant disputes that the Agreement was a condition of employment and its Chief People Officer, Rebecca Seiler, states “Far West team members have opted out of the arbitration agreement in the past.” ROA 22 ¶ 9. What positions these “team members” had within the company and how they opted out of the Agreement is unclear. The Agreement itself is silent regarding the ability and method(s) to opt-out of it. Accordingly, for purposes of the analysis, the court will assume, consistent with plaintiff’s testimony, that assent to the Agreement was required.

A mandatory arbitration agreement exhibits at least a modest degree of procedural unconscionability. See *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1145 (procedural unconscionability presumptively low absent evidence the defendant actively interfered with plaintiff’s ability to review and understand the arbitration clause).

Plaintiff also argues procedural unconscionability on the basis of oppression. Circumstances showing oppression include (1) the amount of time an employee is given to consider a contract; (2) the pressure exerted on him to sign it; (3) its length and complexity; (4) the employee’s education and experience; and (5) whether the employee had legal assistance. *OTO, supra*, 8 Cal.5th at 126-27. Here, plaintiff provides no facts or authority that support this argument. For example, plaintiff does not say he was rushed in his review of it or pressured to sign it, the Agreement consists of three short paragraphs on a single page, it was presented in both English and Spanish, and it is written in plain, non-technical language that is easily understandable. Additionally, it is irrelevant to enforceability whether the Agreement was explained, read, or understood. *Randas v. YMCA of Metro. Los Angeles* (1993) 17 Cal.App.4th 158, 163 (“one who accepts or signs an instrument, which on its face is a contract, is deemed to assent to all its terms, and cannot escape liability on the ground that he has not read it.” Plaintiff has thus failed to establish any amount of oppression.

Accordingly, taken together, the characteristics of the Agreement demonstrate, at most, a finding of low procedural unconscionability based on its assumed mandatory nature.

Substantive Unconscionability

Plaintiff argues the Agreement is substantively unconscionable because it lacks mutuality, is indefinite in duration, overbroad in scope, and bars collective and representative claims. None of these arguments have merit.

As noted above, substantive unconscionability examines the fairness of a contract’s terms to ensure that a contract of adhesion does not impose terms that are overly harsh, unduly oppressive, or unfairly one-sided. *OTO, supra*, 8 Cal.5th at 129-30. The court focuses on terms that unreasonably favor the more powerful party, impair the integrity of the bargaining process, contravene public interest or policy, or attempt to impermissibly alter fundamental legal duties. *Id.* at 130.

1. Mutuality

Plaintiff is incorrect the Agreement lacks mutuality as to the parties subject to its terms. The Agreement covers any claims Company may have against plaintiff or that plaintiff may have against the Company. ROA 22 Ex. 1. “Company” is defined to include defendant Far West and its “related entities, holding companies, parents, subsidiaries, divisions, officers, shareholders, directors, employees, agents, insurers, vendors, contractors, customers, predecessors, successors, and assigns.” Id. This does not implicate the concern in *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312. Unlike here, the agreement in *Cook* required the plaintiff to arbitrate her claims against USC and its “related entities” but did not require the “related entities” to arbitrate claims against the plaintiff. Id. at 321-328.

2. Duration

Plaintiff also argues the Agreement applies indefinitely, but the Agreement, unlike that in *Cook*, does not provide that it survives indefinitely and plaintiff points to no express term or language of the Agreement that so provides. The default rule is that “arbitration agreements that do not specify a term of duration are terminable at will after a reasonable time has elapsed.” *Reigelsperger v. Siller* (2007) 40 Cal. 4th 574, 580. At any rate, nothing in the Agreement implicates the duration concern in *Cook*. See *Cook*, supra, 102 Cal.App.5th at 326 (“The arbitration agreement specifically provide[d] that it will survive unless and until Cook and USC’s president specifically terminate the agreement in a writing, signed by both parties, which expressly mentions the arbitration agreement.”)

3. Scope

Plaintiff argues the Agreement is overbroad in scope because it states it applies to “any controversy, claim or dispute.” ROA 22 Ex. 1. However, this language is substantively different from the provision in *Cook*, which expressly applied to claims “whether or not” they related to plaintiff’s employment. *Cook*, supra, at 326. The Agreement here says no such thing and the court agrees with defendant that the Agreement is reasonably interpreted to apply only to employment related disputes. See *Ayala-Ventura v. Superior Court* (2026) 119 Cal. App. 5th 241.

4. Collective and Representative Action Waiver

Plaintiff is incorrect the Agreement may not waive class and PAGA claims. Under the FAA, class action waivers are enforceable and, in such cases, case law provides for the dismissal without prejudice of the class claims. *Epic Systems Corp. v. Lewis* (2018) 138 S.Ct. 1612; *Stolt-Nielsen S.A. v. AnimalFeeds Int’l Corp.* (2010) 559 U.S. 662, 686; *Kinecta Alternative Financial Solutions, Inc. v. Superior Court* (2012) 205 Cal.App.4th 506, 510-511.

Per *Viking River*, the FAA allows a PAGA claim to be split into individual and representative portions, which the Agreement expressly provides. ROA 22 Ex. 1; *Viking River Cruises, Inc. v. Moriana* (2022) 142 S. Ct. 1906, 1919. Following *Viking River*, the California Supreme Court held “a plaintiff who files a PAGA action with individual and non-individual claims does not lose standing to litigate the non-individual claims in court simply because the individual claims have been

		ordered to arbitration.” Adolph v. Uber Technologies, Inc. (2023) 14 Cal. 5th 1104, 1125. In such cases, the representative PAGA claim should be stayed and the individual PAGA claim should be ordered to arbitration. Both the FAA and California law provide for a stay of proceedings pending arbitration. 9 U.S.C. § 3; C.C.P. § 1281.4. Based on all of the above, the court finds the Agreement enforceable, notwithstanding its small amount of procedural unconscionability, and plaintiff is ordered to individually arbitrate his claims, including the individual PAGA claim, against defendant. Additionally, the class claims shall be dismissed without prejudice pursuant to the class action waiver. Finally, <i>the action, including the representative PAGA claim, shall otherwise be stayed pending the outcome of arbitration.</i> Adolph v. Uber Technologies, Inc. (2023) 14 Cal. 5th 1104; 9 U.S.C. § 3. Defendant to give notice.
107	Purcell vs. Potratz 2019-01115653	Motion to Dismiss Defendants’ Motion to Dismiss is DENIED. Contrary to the court’s prior minute order (ROA 1189), the proof of service indicates electronic service on plaintiffs’ deceased counsel, rather than plaintiffs. ROA 1184, 1185. This ruling is therefore without prejudice, assuming defendants can effectuate proper service of the moving papers. Defendants to give notice.
108	David Goldman v. LBG Real Estate Companies, LLC 2025-01498037	Motion to Appoint Receiver [TO BE HEARD 5/15/26 AT 2PM] The Court has reviewed all papers submitted in connection with Plaintiff/Judgment Creditor David Goldman Motion to Appoint Receiver Over Defendant LBG Real Estate Companies, LLC (“LBG REC”), including Interested Third Parties/Objectors Leslie Lundin and Douglas Beiswenger’s objections to Goldman’s submission of evidence implicating their assertion of attorney-client privilege—namely, the amount of attorneys’ fees paid on behalf of Interested Third Parties to their attorneys at Tucker Ellis LLP. The receiver motion was originally set for hearing on 1/8/2026 in Department C23 of this Court but was reset in this department for 1/29/2029. (ROA #32.) After the moving papers and opposition were filed, Goldman filed an ex parte application, seeking an order (1) permitting this Court to consider newly discovered evidence in connection with the receiver motion; (2) continuing the receiver motion and setting a briefing schedule for the parties to address the new evidence; and (3) finding invalid, pursuant to Code of Civil Procedure section 2031.285, the privilege claim of Interested Third Parties. (ROA #92.) At the 1/22/2026 hearing on the ex parte, the Court (1) continued the receiver motion to 5/14/2026; (2) ordered the parties to file supplemental briefing on the receiver motion pursuant to Code; (3) permitted the Interested Third Parties to file a brief to object to the evidence and raise the privilege issue; and (4) stated that at the continued hearing

on 5/14/2026, the Court will first rule on the privilege issue before considering the evidence on the receiver motion and ruling on the motion. (See ROA #107.)

The Court now rules upon both the privilege issues and Goldman’s receiver motion.

1. Privilege Issues

a. Procedural Issues

Code of Civil Procedure (CCP) section 2031.285 (“Section 2031.285”) provides, in relevant part, as follows:

- Subdivision (b) provides that after being notified of a claim of privilege, the recipient of the information “shall immediately sequester the information and either return the specified information and any copies that may exist or present the information to the court conditionally under seal for a determination of the claim.”
- Subdivision (d)(1) provides that if the recipient “contests the legitimacy of a claim of privilege or protection, he or she may seek a determination of the claim from the court by making a motion within 30 days of receiving the claim and presenting the information to the court conditionally under seal.”
- Subdivision (d)(2) provides that “[u]ntil the legitimacy of the claim of privilege or protection is resolved, the receiving party shall preserve the information and keep it confidential and shall be precluded from using the information in any manner.”
- Subdivision (c)(1) provides that “[p]rior to the resolution of the motion brought under subdivision (d), a party shall be precluded from using or disclosing the specified information until the claim of privilege is resolved.”]

Here, the Court finds that on 1/20/2026, counsel for Interested Third Parties notified Goldman of the privilege claim. (ROA #176, Hedenkamp Supp. Decl., at ¶ 8, Exh. 2.) Thus, to the extent Goldman contests the legitimacy of the privilege claim, he should have simply sought a determination on the privilege claim but should not have used the information in any manner.

Instead of simply filing an ex parte application for an order shortening time to consider a motion brought under Section 2031.285, subdivision (d)(1), along with a request to continue the hearing on the receiver motion until the privilege claim could be determined, Goldman substantively used the allegedly privileged to support his ex parte application to continue the hearing on his receiver motion. While Goldman appropriately made efforts to avoid publicly disclosing the

allegedly privileged information by lodging the information conditionally under seal (see ROA #74, 164), Goldman nevertheless improperly substantively used the allegedly privileged information to support his ex parte application on the receiver motion before the privilege issue had been properly determined pursuant to Section 2031.285, subdivision (d). This was improper under Section 2031.285, subdivisions (c)(1) and (d)(2). Accordingly, counsel for Goldman is **ADMONISHED** to comply with Section 2031.285 in the future.

The Court treats the parties' supplemental briefing filed per Code in advance of the instant hearing as satisfying Section 2031.285, subdivision (d)(1), such that the Court may now rule upon Interested Third Parties' assertion of the attorney-client privilege.

b. Substantive Issues

In ruling upon Interested Third Parties' assertion of attorney-client privilege, the Court is mindful that it may not require disclosure of the information claimed to be privileged in order to rule on the claim of privilege. (*Southern Cal. Gas Co. v. Public Utilities Com.* (1990) 50 Cal.3d 31, 45, fn. 19.)

Interested Third Parties contend only that the amounts of attorneys' fees paid on their behalf to Tucker Ellis in connection with the pending action, *Lundin v. Goldman*, OCSC Case No. 2022-01290254 ("the California Action"), is protected by the attorney-client privilege. (ROA #180, Supp. Opp. at p. 4.) They rely upon *Los Angeles County Board of Supervisors v. Superior Court* (2016) 2 Cal.5th 282, 297, which holds that "[w]hen a legal matter remains pending and active, the [attorney-client] privilege encompasses . . . the amount of aggregate fees" because "even though the amount of money paid for legal services is generally not privileged, an invoice that shows a sudden uptick in spending might very well reveal much of [the client]'s investigative efforts and trial strategy," and "[m]idlitigation swings in spending, for example, could reveal an impending filing or outsized concern about a recent event" (internal quotes omitted).

Goldman refutes this privilege claim by relying upon *Byers v. Superior Court* (2024) 101 Cal.App.5th 1003, 1011, which held that an insured's seeking *Brandt* fees as an element of their damages in a bad faith case against their insurer "is an implied waiver of the attorney-client privilege at least as to the attorney fees documents that the [insureds] plan to rely upon to seek to prove the amount of fees they reasonably incurred to establish their right to benefits under [the] insurance policy." Goldman contends that the waiver ruling in *Byers* applies here because Interested Third Parties obtained payment of the attorneys' fees as part of a demand for indemnification by LBG Medford, LLC and LBG Medford DN, LLC (the "Medford LLCS"). Goldman contends that it does not matter that Interested Third Parties did not make this demand as part of a legal proceeding.

But in reaching its holding, the *Byers* court explicitly noted that "it is well established in other contexts that '[w]here privileged information goes to the heart of the claim, fundamental fairness requires that it be disclosed for the litigation to proceed.'" (*Byers, supra*, 101 Cal.App.5th at p. 1011.)

Moreover, in *Kerner v. Superior Court* (2012) 206 Cal.App.4th 84, 112, fn. 13, the Court of Appeal has refused to apply this type of "nonstatutory implied waiver of

the attorney-client privilege in some circumstances when the client puts the privileged communication directly at issue in litigation and disclosure is essential to a fair adjudication” when the person asserting the privilege is “not a party to the trial court proceedings and did not put any matter at issue here.” That is precisely the situation here, as the instant action involves Goldman as the Plaintiff/Judgment Creditor and LBG REC as the Debtor, and Interested Third Parties are not parties to this action and did not put any matter at issue here.

Therefore, the Court holds that Interested Third Parties have appropriately asserted in this action a claim of attorney-client privilege over the amount of attorneys’ fees paid on their behalf to Tucker Ellis.

Accordingly, the Court **SUSTAINS** Interested Third Parties’ objections to Goldman’s use of the privileged information in this action and **ORDERS** that any papers filed by Goldman containing such privileged information be **STRICKEN** from the record.

Interested Third Parties are **ORDERED** to prepare a proposed order specifying the filings that are subject to strike and submit the proposed order within 5 court days of this ruling.

2. Receiver Motion

Accordingly, the Court did not consider the amount of the attorneys’ fees subject to Interested Third Parties’ attorney-client privilege in ruling upon Goldman’s receiver motion.

Under Code of Civil Procedure section 708.620, “[t]he court may appoint a receiver to enforce the judgment where the judgment creditor shows that, considering the interests of both the judgment creditor and the judgment debtor, the appointment of a receiver is a reasonable method to obtain the fair and orderly satisfaction of the judgment.”

Further, under Code of Civil Procedure section 564, subdivision (b), the court may appoint a receiver in the following cases, in relevant part:

(1) In an action . . . by a creditor to subject any property or fund to the creditor’s claim . . . on the application of the plaintiff . . . , and where it is shown that the property or fund is in danger of being lost, removed, or materially injured.

. . .

(3) After judgment, to carry the judgment into effect.

(4) After judgment, to dispose of the property according to the judgment, . . . or pursuant to the Enforcement of Judgments Law

. . .

(9) In all other cases where necessary to preserve the property or rights of any party.

“[T]rial courts enjoy a large measure of discretion, albeit not an entirely uncontrolled one, in deciding when to exercise their authority to appoint a receiver.” (*Medipro Medical Staffing LLC v. Certified Nursing Registry, Inc.* (2021) 60 Cal.App.5th 622, 627, internal quotes omitted.)

It is well-established under California law that “[b]ecause the appointment of a receiver transfers property—or in this case, a business—out of the hands of its owners and into the hands of a receiver, the appointment of a receiver is a very drastic, harsh, and costly remedy that is to be exercised sparingly with caution.” (*Id.* at p. 628, internal quotes & citations omitted.) Thus, “[d]ue to the extraordinary nature of this remedy and the special costs it imposes, courts are strongly discouraged—although not strictly prohibited—from appointing a receiver unless the more intrusive oversight of a receiver is a necessity because other, less intrusive remedies are either inadequate or unavailable.” (*Id.*, internal quotes omitted.)

Indeed, “[i]n light of the sheer number of enforcement mechanisms for collecting money judgments under the Enforcement of Judgments Law, . . . appointment of a receiver is rarely a necessity and, as a consequence, may not ordinarily be used for the enforcement of a simple money judgment.” (*Id.*, internal citations & quotes omitted.) Appointment of a receiver is “reserved for exception circumstances where the judgment creditor’s conduct makes a receiver necessary—and hence proper,” which “occurs when the judgment debtor has frustrated the judgment creditor’s collection efforts through obfuscation or through otherwise contumacious conduct that has rendered feckless the panoply of less intrusive mechanisms for enforcing a money judgment.” (*Id.*, internal quotes omitted.)

In *Medipro*, the appellate court held that the trial court had abused its discretion in appointing a receiver when there was no evidence, let alone the substantial evidence necessary to sustain a proper exercise of discretion, that the judgment debtor and related entities and persons had “engaged in obfuscation or other obstreperous conduct to the degree that the other collection mechanisms available under the Enforcement of Judgments Law were ineffective.” (*Id.* at p. 629.) Indeed, the creditor had not served any interrogatories requesting information to aid in the collection of the judgment, did not place any liens on relevant property, and did not seek to compel any appearance at debtors’ examinations, although the creditor had unsuccessfully tried to serve one debtor and had served another but had yet to conduct the examination. (*Id.* at p. 625.)

The appellate court in *Medipro* also rejected the creditor’s contention that the trial court could have reasonably inferred that slowdowns in the debtors’ accounts receivable and distributions were due to the debtors’ nefarious conduct, as such an inference was “based on nothing but speculation,” as it was “based on nothing more than its counsel’s ‘information and belief’ and is thus also ‘insufficient.’” (*Id.* at p. 629.)

Here, Goldman similarly has not served any interrogatories or noticed, much less conducted, a debtor’s exam. (ROA #66, Opp., at p. 2.) In fact, even after LBG REC pointed this out in its initial opposition filed on 1/15/2026, Goldman still has not served interrogatories or noticed a debtor’s exam. (ROA #174, Supp. Op. at p. 10.) Moreover, LBG REC represents that it “will submit to a debtor’s exam and/or

respond to post-judgment interrogatories.” (*Id.*) Goldman contends—without any citation to authority—that he is “not required to pursue the full panoply of less intrusive enforcement mechanisms before seeking a receiver” simply because this case involves “complex motivations and ongoing litigation.” (ROA #202, Reply, at p.3.) But *Medipro* clearly holds that these are basic, less intrusive mechanisms for enforcing a judgment, and without trying them first, appointment of a receiver can hardly be deemed a necessity.

Indeed, Goldman’s own moving memorandum of points and authorities concedes that “[i]t is unclear what is the disposition of the property of LBG REC” or “whatever income or property there is.” (ROA #32, Mot. P&A at pp.9.) These are questions that can be appropriately clarified and answered through interrogatories and a debtor’s exam in the first instance.

Nor has Goldman shown, with sufficient evidence, that LBG REC or its managers have obfuscated Goldman’s efforts to collect on his judgment to such a degree that the drastic remedy of a receiver is appropriate. At most, Goldman’s declaration points conclusorily to certain LBG REC financial documents and spreadsheets to contend that LBG REC has had assets and, at times, a projected net positive cashflow in 2021 to 2024, yet has not paid Goldman’s judgment. (See, e.g., Goldman Decl., ¶¶ 39-43, Exhs. I-K.) But neither Goldman’s declaration nor any of his briefs in support of the receiver motion clearly explains—with appropriate citations to specific page and line numbers of the proffered exhibits—what exactly the figures show or how the listed figures support his contentions. Instead, it appears from these documents that LBG REC is correct in contending that “both net operating income and net income have been consistently negative from October 2022 through April of 2024, with a few positive months that are significantly outweighed by the more numerous and larger negative months.” (Opp. at p. 12, citing Goldman. Decl., Exh. K at pp. 5-6 of 16.)

Moreover, even after LBG REC’s opposition pointed out that Goldman’s motion supported his “claims that LBG REC is owed substantial amounts from the other LBG entities . . . only by citing to cryptic financial statements that do not support the contentions for which he cites them” (Opp. at p. 3), Goldman failed to clearly explain his contentions with sufficient evidentiary support. For example, although LBG REC’s opposition contended that “the other LBG Entities have no contractual obligation whatsoever to pay fees to LBG REC” (*id.*), Goldman’s reply simply responds by contending that “[t]he first page of Exhibit I is an excerpt from one such contract” requiring the payment of fees to LBG REC (Reply at p. 5). But page 1 of Exhibit I is an incomplete copy of a “Schedule A” that purports to set forth “Commission Rates” and refers to various capitalized terms like “Agent” for which no definition is provided. And Goldman’s declaration proffering Exhibit I states only that it is “a true and correct copy of an Excel spreadsheet produced by LUNDIN and BEISWENGER in discovery, which reflects monies transferred to LBC [*sic*] REC in 2023 and 2024, among other data.” (ROA #33, Goldman Decl., ¶ 39, Exh. I.) There is no explanation about what “Schedule A” is a part of or how it relates to the subsequent spreadsheet that constitutes the remainder of Exhibit I. Nor has Goldman explained who prepared the subsequent spreadsheet, the context for the creation of the spreadsheet, or what the spreadsheet purports to show. Accordingly, Goldman’s declaration lacks the necessary foundation to properly authenticate Exhibit I, much less explain how it is to be interpreted and understood.

		The Court also does not find persuasive Goldman’s newly discovered evidence relating to Medford LLCs’ fee payments to Tucker Ellis. This action is one for the enforcement of Goldman’s judgment against LBG REC based on LBG REC’s assets. The fee payments in question were not made by LBG REC but by the Medford LLCs. Goldman has not demonstrated that the assets used by the Medford LLCs were LBG REC’s assets such that they are subject to satisfaction of Goldman’s judgment against LBG REC. Ultimately, Goldman’s claims that Lundin and Beiswenger are mismanaging the Medford LLCs by allegedly improperly paying their personal attorneys’ fees to Tucker Ellis are issues for disposition in the related California Action, not in this enforcement action. At bottom, Goldman has not produced sufficient evidence to demonstrate that the drastic, harsh, and costly remedy of appointing a receiver is necessary under the circumstances. Accordingly, Goldman’s receiver motion is DENIED. LBG REC shall give notice of all of the above.
109	Andrawes Husary vs. Shahidi 2025- 01487294	Motion – Pro Hac Vice The Court previously conditionally approved counsel’s application to appear Pro Hac Vice but ordered an amended application upon learning that the sponsoring attorney had passed away. Moving party has so far failed to comply with the Court’s order. The Court therefore continues this matter to the date of the rescheduled motion for stay and CMC with the proviso that the Court will consider whether to issue an amended order denying counsel’s PHV application for failure to file the amended application. Moving party is ordered to file the amended application 10 days before the continued hearing date of 07/23/2026 at 02:00 PM in Department CX102. Clerk to give notice
110	Sandoval vs. Cybex Security Solutions, LLC 2024- 01398109	Motion for Final Approval re Class and PAGA Settlement Plaintiff Vicente Sandoval’s Motion for Final Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending the resolution of the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On May 8, 2024, Plaintiff Vicente Sandoval, as an individual and on behalf of all others similarly situated (“Plaintiff”), filed a Class Action Complaint against Defendants Cybex Security Solutions, LLC and Sonitrol Orange County, LLC (“Defendants”). The Complaint asserts seven (7) causes of action for various violations of the Labor Code’s wage-and-hour provisions and unfair business practices. On July 15, 2024, as a matter of right, Plaintiff filed the operative First Amended Class and Representative Action Complaint (“FAC”) adding a claim for PAGA penalties. Defendants answered on September 9, 2024.

On January 24, 2025, the parties attended mediation and accepted the mediator's settlement proposal.

On June 5, 2025, Plaintiff filed a Motion for Preliminary Approval of Class Action and PAGA Settlement, and submitted the Stipulation of Settlement and Class Notice for the Court's review. After the Court expressed certain concerns about the Settlement Agreement and other matters, the parties prepared and executed the Amendment to Stipulation of Settlement (collectively with Stipulation of Settlement, "Settlement Agreement"). On October 23, 2025, at the second hearing on the matter, the Court granted the motion for preliminary approval. (ROA #88.) On October 31, 2025, the Court entered the order granting preliminary approval. (ROA #94.)

On April 20, 2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. The motion seeks approval of the Settlement Agreement, which provides for the settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount ("GSA") of \$185,000. The GSA includes \$10,000 allocated for PAGA penalties.

The Class is comprised of 42 Class Members, defined as "all current and former non-exempt employees who worked for Defendants in California between May 8, 2020 and September 11, 2025 (the 'Class Period')."

The settlement also includes 28 Aggrieved Employees, defined as "all current and former non-exempt employees who worked for Defendants in California at any time from May 8, 2023 through September 11, 2025 (the 'PAGA Period')."

The settlement administrator, Apex Class Action, LLC, reports as follows:

- On 12/2/2025, the administrator sent class notices via U.S. Mail to 42 Class Members, including 28 Aggrieved Employees.
- Initially, four (4) class notices were returned as undeliverable, but after skip-tracing, the administrator remailed those notices. As of 4/13/2026, zero (0) class notices were returned to the administrator as undeliverable.
- As of 4/13/2026, no requests for exclusion, objections, or workweek disputes were received.

Therefore, 100% of the Class is participating in the settlement.

The Court concludes that the \$185,000 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. The Court also certifies the defined Class for settlement purposes only.

The Court concludes that an attorneys' fee award totaling \$61,666.66 or 1/3 of the GSA, constituting a 0.67 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action's contingent nature and the results achieved.

The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage and copying. Therefore, the Court awards

\$7,570.58 in costs after deducting \$41.21 from the requested amount for the following cost items:

- 2/29/2024 – Postage - \$14.72
- 2/29/2024 – Copying - \$1.75
- 5/31/2024 – Postage - \$15.20
- 5/31/2024 – Copying - \$3.50
- 10/31/2024 – Postage - \$5.54
- 3/19/2026 – Copying - \$0.50

The Court further concludes that a Class Representative Enhancement Payment of \$5,000 is fair, adequate, and reasonable for a class and settlement of this size, considering Plaintiff's contribution to the case.

The Court has identified the following minor issues with the moving papers, which must be addressed by Class Counsel before the Court will sign the Order Granting Final Approval and Judgment:

1. The moving papers do not state the total number of workweeks.
2. As the moving papers do not state the total number of workweeks and do not address the escalator clause, it is unknown whether the escalator clause has been triggered.

These issues must be addressed by Class Counsel within five (5) court days.

Upon resolution of these issues, the Court will grant the instant motion and approve the following specific awards and disbursements from the GSA:

- Attorneys' fees totaling \$61,666.66 awarded to Class Counsel;
- Litigation costs totaling \$7,570.58 awarded to Class Counsel;
- Settlement administration costs of \$3,990.00 awarded to Apex Class Action, LLC;
- Class Representative Enhancement Payment of \$5,000.00 awarded to Plaintiff Vicente Sandoval; and
- \$7,500.00 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties.

The Net Settlement Amount payable to all Class Members is \$99,272.76, including the \$2,500.00 in PAGA penalties to be distributed to the Aggrieved Employees, in accordance with the terms of the Settlement Agreement. Pursuant to the Settlement Agreement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments.

Within five (5) court days, Class Counsel must submit a revised Proposed Order of Final Approval and Judgment with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. This department hears Law & Motion on Thursdays. Counsel must select a Final Accounting hearing date on a Thursday.

		3. Supporting papers must be submitted at least 16 court days before the Final Accounting hearing (calculated while accounting for court holidays). Final Accounting will be set in accordance with the Court’s Order of Final Approval and Judgment after Class Counsel proposes an appropriate date in the revised proposed order and judgment. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller’s Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.
111	Rotaru vs. Blower-Dempsey Corporation 2024-01409012	Motion for Preliminary Approval of Class and PAGA Settlement The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff’s motion for preliminary approval of a \$288,000 class and PAGA action settlement. Upon the submission of the documents described below, the motion will be GRANTED. Counsel states ROA 74 Ex. 4 is “[a] true and correct copy of each confirmation from the LWDA” reflecting service on the LWDA of the moving papers. ROA 74 ¶ 75. This is a single confirmation, and it does not identify the documents purportedly served. All proofs of service to the LWDA must be in the form of the proof of service following ROA 74. Assuming compliance with the above, and based on a review of the settlement, the court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the final approval hearing. The final approval hearing is scheduled for November 12, 2026 at 2:00 p.m. in Department CX102. The motion for final approval shall be filed at least 16 court days before the hearing. If counsel cannot meet this deadline, then counsel must request a continuance of the hearing. Failure to do so may result in the issuance of an OSC re: Monetary Sanctions. At the final approval hearing, evidence supporting the request for an award of attorneys’ fees should be presented in the form of time records or a summary of time spent on the substantive tasks to enable the court to evaluate the lodestar and costs claimed. Class counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. Although a determination regarding the amount of the attorneys’ fees award will not be made until final approval, the court is unlikely to approve attorneys’ fees in excess of thirty percent (30%) of the GSA absent unique circumstances. Class counsel should address whether any such unique circumstances exist. Requests for litigation costs should

		be supported by invoices and should not include copies, postage, legal research, and other office overhead. Additionally, at the final approval hearing, plaintiff must provide a detailed declaration describing the circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation and the estimated amounts of her individual class and PAGA awards. Within five court days, counsel to submit a proposed order with exhibits attached that conforms in all aspects to the above. Plaintiff to give notice of this court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
112	Gonzalez vs. Bear Down Brands, LLC 2023-01340515	Motion for Preliminary Approval of Class and PAGA Settlement Plaintiff Nicolas Gonzalez's Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to July 23, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 8/7/2023, Plaintiff Nicolas Gonzalez, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Bear Down Brands, LLC, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #2.) Defendant answered on 11/8/2023. (ROA #13.) On 1/8/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class/PAGA Action Settlement Agreement ("Settlement Agreement") and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$149,250. The GSA includes a credit of \$37,250 for money already paid by Defendant to individual <i>Pick Up Stix</i> Settled Class Members allegedly as a result of this action and \$12,500 allocated for PAGA penalties. The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. Plaintiff must provide a copy of his PAGA notice letter to the LWDA. 2. The moving papers do not provide sufficient information about Defendants' <i>Pick Up Stix</i> settlement payments—including but not limited to the dates of the settlement payments, how many Class Members were paid, how much was paid to each, or what type of release Defendant obtained in exchange—so as to allow the Court to properly evaluate the fairness, adequacy, and

		reasonableness of the terms of the instant Settlement Agreement, including the \$250 payments to <i>Pick Up Stix</i> Unsettled Class Members in the first instance before pro rata allocation of the remaining Net Settlement Amount among all Class Members. The moving papers also do not address whether the named Plaintiff received a <i>Pick Up Stix</i> settlement from Defendant. 3. The moving papers fail to provide the Class Members' and PAGA Aggrieved Employees' estimated individual recovery under the proposed settlement, including the estimated average, low, and high payments to be paid to Class Members and PAGA Aggrieved Employees. At a minimum, the average payments must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. 4. The Settlement Agreement specifies that Class Members may opt out by mail but does not specify the method for submitting written objections and workweek/pay period disputes. Relatedly, the Class Notice states that workweek/pay period disputes may be submitted by mail, fax, or email, although the Settlement Agreement does not so specify. Nor does the Settlement Agreement specify how Class Members must submit their written objections to the administrator. Ultimately, Class Members should clearly have the option of submitting opt-outs, objections, and workweek/pay period disputes by mail, fax, and email. 5. The Settlement Agreement does not specify how the 60-day response deadline for opt-outs, objections, and workweek/pay period disputes will be calculated for remailed notices, but the proposed order states that the 60-day response deadline for opt-outs and workweek/pay period disputes is measured from either when the Class Notice is first mailed to the Class or remailed to the Class Member; however, the proposed order also states that for objections, the 60-day response deadline is measured only from when the Class notice is first mailed to the Class. Ultimately, the deadline for all responses to the Class Notice should be 60 days measured from either when the Class Notice is first mailed to the Class or when the Class Notice is remailed to the Class Member, whichever is later. 6. The Settlement Agreement should specify that the Court's continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). 7. Plaintiff's counsel must attest to whether there are any concurrent pending cases involving similar claims against Defendant that may be impacted by the settlement and how, or confirm that there is none. 8. The Class Notice is only in English. Class Counsel must address whether the notice will be translated into any other language, or confirm it will not be translated and explain why English only is appropriate. Class Counsel must also provide the Court with a revised Class Notice with the following revisions: 1. The notice should be revised so as to be consistent with the resolution of the issues identified above. 2. The pages should be numbered. 3. Overall, the Class Notice, including the Class Workweek Dispute Form, does not clearly and consistently explain that Class Members can dispute the number of workweeks, the number of pay periods, or both.
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4. The following sentences on p. 1 should be bolded: “Your legal rights are affected whether you act or not act. Read this Notice carefully. You will be deemed to have carefully read and understood it.”
5. On p. 2, it is confusing to list only 2 options at first and then list 5 options immediately thereafter. These two sections should be combined into a single section that just identifies the 5 main options.
6. The notice on p. 3 states that Class Members cannot object to the PAGA settlement. This is incorrect, as they can object—they just cannot opt out.
7. The Class Notice should include a separate form for objections, just as it does for workweek/pay period disputes and opt-outs.
8. On p. 4, the notice includes a statement that “Plaintiffs and Class Counsel strongly believe the Settlement is a good deal for you” for various reasons. However, the Class Notice should “avoid any commentary on the merits of the settlement.” (Guidelines for Approval of Class Action Settlements & PAGA Settlements, ¶ I.C.35.)
9. Paragraph 3.3 of the notice states: “After making the above deductions in amounts approved by the Court, the Administrator will distribute the rest of the Gross Settlement (the ‘Net Settlement’) *according to the schedule outlined above* by making Individual Class Payments to Participating Class Members based on their Class Period Workweeks and whether they previously received payment from Defendant as part of an individual agreement between the applicable Participating Class Members and Defendant” (emphasis added). However, the detailed description of how the Administrator will calculate payments is set forth *below* in Section 4.
10. Section 7 of the notice may be interpreted as advising Class Members to wait to object until after Plaintiff has filed his final approval motions, which need not occur until 16 court days before the final approval hearing date and may therefore occur after Class Members’ deadline to send written objections. The notice should simply inform Class Members of the deadlines for Plaintiff’s filings in support of final approval as well as the final approval hearing date.
11. The URL provided in Section 7 for the Court’s website to access case documents is incorrect and does not work.
12. The Class Notice, including all forms, should clearly and consistently explain that opt-out requests, objections, and workweek/pay period disputes may be mailed, faxed, or emailed.
13. The notice should specify that the judgment, “whether favorable or not,” will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).)

Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions:

1. The proposed order should be revised to incorporate the relevant revisions identified above, including attaching the revised Class Notice.
2. Attorney information must be deleted from the caption page.
3. The title of the document should add “and PAGA” between “Class Action” and “Settlement.”
4. The date for the preliminary approval hearing should be updated to reference the continued hearing date.

5. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
6. All terms that require definition must either be defined in the proposed order itself or clearly incorporate by reference definitions found elsewhere in the record.
7. The proposed order should specify the amounts proposed to be allocated from the GSA to attorneys' fees, litigation costs, enhancement(s), administration costs, and PAGA penalties (including to the LWDA and to Aggrieved Employees).
8. The proposed order should also include the definitions for PAGA Aggrieved Employees and the PAGA Period.
9. The proposed order should specify the approval of ILYM Group, Inc. as the settlement administrator.
10. As noted above, although for opt-outs and workweek disputes, the proposed order granting preliminary approval states that the 60-day response deadline is measured from either when the Class Notice is first mailed to the Class or remailed to the Class Member, the proposed order noticeably changes this calculation for objections—it states that objections must be sent to the administrator “no later than 60 calendar days after the date the Class Notice is first mailed by the Settlement Administrator.” For those Class Members who receive remailed notices, objections should also be due “no later than 60 calendar days after the Class Notice is first mailed to the Class (or re-mailed to the Class Member).”
11. Counsel should not leave blank but should instead propose a realistic Final Approval hearing date, taking into account the deadlines associated with mailing and remailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys' fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff's declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.
12. The following injunction should be removed from the preliminary approval order as it is premature at this stage of the proceedings: “IT IS FURTHER ORDERED that pending final determination of whether this proposed Settlement should be granted final approval, no member of the Class, either directly or representatively, or in any other capacity, shall commence or prosecute any action or proceeding asserting any of the Released Class Claims against the Released Parties, as defined in the Settlement Agreement.”
13. The proposed order should specify the Court's continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).

The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court's website for Department CX102, available at <https://voypubapps.occourts.org/complex-civil-calendar>.

		Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
113	Regalado Contreras vs. Inmar Supply Chain Solutions, LLC 2024-01444626	Motion for Preliminary Approval of Class and PAGA Settlement Plaintiff Mario Regalado Contreras’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to July 23, 2026, at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 12/6/2024, Plaintiff Mario Regalado Contreras, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant. (ROA #2.) On 2/10/2025, Plaintiff filed a first amended complaint to add a cause of action for PAGA penalties. (ROA #17.) The operative complaint is the second amended complaint, filed on 11/4/2025 pursuant to the parties’ stipulation and the Court’s order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #73.) On 11/3/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Stipulation of Class and PAGA Settlement (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$160,000. The GSA includes \$10,000 allocated for PAGA penalties. The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. Class Members must have the option of submitting requests for exclusion, objections, and workweek disputes by fax and email in addition to by mail. 2. The deadline for responses to the Class Notice (i.e., opt outs, objections, and workweek disputes) after remailing is too short and should be at least 30 days after remailing.

3. The Settlement Agreement should specify that the Court's continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).

Class Counsel must also provide the Court with a revised Class Notice with the following revisions:

4. The notice should be revised so as to be consistent with the resolution of the issues identified above.
5. On p. 2, counsel Paul K. Haines of Haines Law Group, APC should be listed among the attorneys for Plaintiff / Settlement Class Members, as the motion seeks Haines's appointment as Class Counsel.
6. The paragraph relating to appearing at the Court and complying with COVID restrictions should be removed, especially since the URL provided for relevant rules and orders does not work.
7. The URL provided for remote appearance also does not work.
8. The notice should provide a URL to a website, maintained by the settlement administrator or plaintiff's counsel, that has links to the notice and key case documents.
9. The notice should specify that the judgment, "whether favorable or not," will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).)

Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions:

10. The proposed order should be revised to incorporate the relevant revisions identified above, including attaching the revised Settlement Agreement and a revised Class Notice.
11. The title of the document should add "and PAGA" between "Class Action" and "Settlement."
12. The date for the preliminary approval hearing should be updated to reference the continued hearing date.
13. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
14. All terms that require definition must either be defined in the proposed order itself or clearly incorporate by reference definitions found elsewhere in the record.
15. The proposed order should specify the amounts proposed to be allocated from the GSA to attorneys' fees, litigation costs, enhancement(s), administration costs, and PAGA penalties (including to the LWDA and to Aggrieved Employees).
16. Counsel should not leave blank but should instead propose a realistic Final Approval hearing date, taking into account the deadlines associated with mailing and remailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys' fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff's declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All

		supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date. 17. The correct address of this Court should be listed in ¶ 13. 18. The proposed order should specify the Court’s continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
114	Coleman vs. Resurgence Behavioral Health LLC a Nevada corporation 2021-01225871	1. Motion for Preliminary Approval of Class and PAGA Settlement 2. Order to Show Cause re: Monetary Sanctions The Court has reviewed the supplemental materials provided by Class Counsel and finds that with a couple of exceptions, they adequately address the previously identified issues. Accordingly, Plaintiff Rebecca Coleman’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending submission of (1) a further amendment to the Settlement Agreement addressing the below identified issue with ¶ 7.4.4; (2) a further declaration from Class Counsel addressing the Class Notice language issue; and (3) a further revised proposed order. This is a putative wage-and-hour class action and PAGA matter. On 10/12/2021, Plaintiff Rebecca Coleman, individually and on behalf of other members of the general public similarly situated (“Plaintiff”), filed a Class Action Complaint against Defendants Resurgence Behavioral Health, LLC; Resurgence California, LLC; A New Start Treatment and Recovery Center, LLC dba Muse Treatment; Advanced Recovery Solution, LLC; Balboa Horizons Recovery Services; and The Well Recovery Partners (together, “Defendants”). The Complaint asserts nine (9) causes of action for various violations of the Labor Code’s wage-and-hour provisions. On 7/3/2023, pursuant to stipulation and order, Plaintiff filed the operative First Amended Class Action Complaint for Damages and Enforcement Under the Private Attorneys General Act (“FAC”) wherein she added causes of action for Violation of Business & Professions Code §§ 17200, et seq., and PAGA penalties. Defendants answered on 8/7/2023. On 11/2/2023, pursuant to stipulation and order,

Defendant The Well Recovery Partners was dismissed from the action without prejudice.

The parties attended mediation on 3/4/2024, and negotiated a complete settlement of the claims. On 8/1/2024, Plaintiff filed a Notice of Settlement of the action. On 6/13/2025, Plaintiff filed the current Motion for Preliminary Approval of Class Action and PAGA Settlement and submitted the Class Action and PAGA Settlement Agreement (“Settlement Agreement”) and Class Notice for the Court’s review. The Motion seeks preliminary approval of the parties’ proposed settlement for the non-reversionary Gross Settlement Amount of One Million Dollars (\$1,000,000.00).

On 9/11/2025, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #124.) On 11/3/2025, the parties filed a stipulation to continue the 11/6/2025 hearing to 12/4/2025. (ROA #130.) On 12/16/2025, the Court issued a minute order noting that supplemental papers addressing the Court’s concerns had not been filed as required. (ROA #134.) The Court then issued an updated minute order nunc pro tunc on 12/23/2025. (ROA #139.) The Court continued the preliminary approval hearing to 2/26/2026 and also set an OSC re Monetary Sanctions against Class Counsel for failure to comply with the Court’s prior orders to file supplemental papers in advance of the continued hearing. (*Id.*)

On 2/9/2026, Class Counsel filed a declaration in response to the OSC. (ROA #142.) Counsel apologized for the failure to file supplemental briefing and attested to acting diligently and in good faith to repeatedly seek from Defendants information necessary to complete the required supplemental filings, but Defendants had failed to provide the necessary information. (*Id.*)

On 2/26/2026, the Court ordered defense counsel to provide Plaintiff’s counsel with the information required to amend the supplemental papers by 3/6/2026 and continued the hearing on the instant motion and the OSC to 5/14/2026. (ROA #145.)

On 3/16/2026, Plaintiff’s counsel submitted supplemental materials, including an Amendment No. 1 to the Class Action and PAGA Settlement Agreement and Class Notice (“Amendment No. 1”).

Based on a review of all papers submitted, including the Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

However, within ten (10) court days, Class Counsel must submit a further amendment to the Settlement Agreement that addresses the following issue:

In the Court’s previous 9/11/2025 minute order, the Court noted that “[i]n the Settlement Agreement, the Response Deadline for the submission of Requests for Exclusion, objections, and workweek disputes after the remailing of any Class Notices should be at least thirty (30) days.” (ROA #124.) Although Amendment No. 1 amends ¶ 1.43 of the Settlement Agreement, ¶ 1.43 addresses only the deadline for requests for exclusion and objections. Paragraph 7.4.4 of the Settlement Agreement states: “The deadlines for Class Members’ written objections, *Challenges to Workweeks and/or Pay Periods* and Requests for

Exclusion will be extended an additional fourteen (14) calendar days beyond the forty-five (45) calendar days otherwise provided in the Class Notice for all Class Members whose notice is remailed.” (Emphasis added.) Amendment No. 1 does not amend ¶ 7.4.4 of the Settlement Agreement to provide 30 days—rather than 14 days—to Class Members whose Class Notice is remailed to respond with their workweek/pay period disputes. Therefore, a further amendment to the Settlement Agreement is required to appropriately amend ¶ 7.4.4.

Additionally, within ten (10) court days, Class Counsel must submit a supplemental declaration to address the following issue: Class Counsel’s 3/16/2026 supplemental declaration attests that “[o]n November 18, 2025, Counsel for Defendants confirmed that the Class Notice will not need to be translated to any language other than English.” (ROA #152, ¶ 11.) However, neither counsel has explained why English-only is appropriate. For example, do all Class Members speak English?

Furthermore, within ten (10) court days, Class Counsel must submit a further revised Proposed Order with the following corrections and revisions:

1. Although the revised proposed order submitted at ROA #146 lists the ROA number for the declaration attaching the original Settlement Agreement, the ROA number for the declaration attaching Amendment No. 1 is not listed. Additionally, to the extent a further amendment to the Settlement Agreement must be executed to address the Court’s concern with ¶ 7.4.4 of the Settlement Agreement, the ROA number of the declaration attaching that further amendment must also be included in a further revised proposed order.
2. In light of the further continuance of the instant motion for preliminary approval, Class Counsel should propose a new, realistic Final Approval hearing date, taking into account the deadlines associated with mailing and remailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys’ fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff’s declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.

Upon submission of these materials, along with proof of service of all supplemental papers upon the LWDA, the Court will grant the Motion.

The Motion for Final Approval will be set in accordance with the Court’s Order Granting Preliminary Approval of Class Action Settlement after Class Counsel proposes a new realistic date as explained above. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

	At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist.
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	Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation.
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	Finally, the Court finds that Class Counsel has provided substantial justification for failure to comply with the Court's prior orders. Therefore, the Court VACATES and DISCHARGES the OSC re Monetary Sanctions Against Class Counsel.
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	Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.
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